TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 900]

NORTH DAKOTA

REVOKING EXECUTIVE ORDER NO. 8658 OF FEBRUARY 3, 1941

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831) it is ordered as follows:

Executive Order No. 8658 of February 3, 1941, reserving all lands owned or controlled by the United States within the following-described area in North Dakota for the use of the Department of the Interior as the Prairie Lake National Wildlife Refuge, is hereby revoked:

FIFTH PRINCIPAL MERIDIAN

T. 152 N., R. 58 W.,
Sec. 26, NW¼;
Sec. 27, NE¼.

The areas described aggregate 320 acres of privately-owned lands formerly controlled by the United States under a revocable easement.

DOUGLAS MCKAY,
Secretary of the Interior.

JUNE 24, 1953.

[F. R. Doc. 53-5734; Filed, June 30, 1953; 8:45 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[No. 10122]

PART 139—STANDARD TIME ZONE BOUNDARIES

STANDARD TIME ZONE INVESTIGATION

At a session of the Interstate Commerce Commission, Division 2, held at its office in Washington, D. C., on the 23d day of June A. D. 1953.

It appearing, that by report and order dated October 24, 1918 (51 I. C. C. 273; 49 CFR 139), the Commission defined the limits of the time zones throughout the United States created by the act of Congress entitled "An Act to Save Daylight and to Provide Standard Time", approved March 10, 1918 (40 Stat. 450; 15 U. S. C. 261–5), and that said limits were restated and redefined in the sixteenth supplemental report and order in this investigation, dated May 19, 1928 (142 I. C. C. 279; 49 CFR 139), and were modified from time to time;

It further appearing, that a petition has been filed by the Union Pacific Railroad Company for a modification of the outstanding orders herein by the cancellation of operating exceptions in Utah south of Salt Lake City, Utah, and the authorization of operating exceptions in Nevada north of Las Vegas, Nev.;

And it further appearing, that a full investigation of the matters and things involved has been made, and that the said division, on the date hereof, has made and filed its thirty-third supplemental report in the above-entitled proceeding containing its findings of fact and conclusions thereon, which said report, and the aforesaid reports, are hereby referred to and made a part hereof, and has found that the usual notice of rule-making and public procedure thereon are impracticable and unnecessary:

It is ordered, That the above-entitled proceeding be, and it is hereby, reopened for consideration of the matters raised by the said petition;

It is further ordered, That the said order of October 24, 1918, as restated in the said order of May 19, 1928, as subsequently amended by order of March 31, 1948 (270 I. C. C. 15), and corresponding sections of the Code of Federal Regulations (49 CFR Part 139), are hereby amended by deleting from § 139.7 (d) (1) all operating exceptions heretofore authorized as to lines of the Union Pacific Railroad Company in Utah south of Salt Lake City and by adding to § 139.7 (d) (2) a new exception covering the lines of that railroad in Nevada north of Las Vegas.

As so amended, § 139.7 (d) will read as follows:

§ 139.7 *Boundary line between mountain and Pacific zones.* * * *

(d) *Operating exceptions*—(1) *Lines east of boundary excepted from mountain zone.* Those portions of the lines of railroad, named in this subparagraph, located east of the zone boundary line above described, shall, for operating purposes only, be excepted from the United States standard mountain time zone and included within the United States standard Pacific time zone, viz:

Name of railroad	From—	To—
Great Northern Northern Pacific	Troy, Mont. Paradise, Mont.	Montana-Idaho State line.

(2) *Lines west of boundary included in mountain zone.* Those portions of the lines of railroad, named in this subparagraph, located west of the zone boundary line above described, shall, for operating purposes only, be excepted from the United States standard Pacific time zone and shall be included within the United States standard mountain time zone, viz.:

Name of railroad	From—	To—
Atchison, Topeka & Santa Fe.	Colorado River.	Southern limits of Needles, Calif.
Chicago, Milwaukee, St. Paul & Pacific.[1]	Montana-Idaho State line.	Avery, Idaho.
Union Pacific [2]	Malheur Junction, Oreg.	Crane, Oreg.
Do.[3]	Clearfield, Utah.	Syracuse, Utah.
Do.[3]	Utah-Nevada State line (west of Uvada, Utah).	Northern limits of Las Vegas, Nev.

[1] Formerly the Chicago, Milwaukee & St. Paul Ry.
[2] Previously authorized for the Oregon Short Line, now a part of the Union Pacific.
[3] Not required to show Pacific time in published announcements for operations at Caliente, Nev., and points in Nevada north and east of Caliente.

It is further ordered, That the changes and additions required hereby shall become effective at 2 o'clock ante meridian Pacific standard time, June 28, 1953.

And it is further ordered, That notice to the general public shall be given by depositing a copy of this order in the office of the Secretary of the Commission for public inspection and by filing a copy with the Director, Division of the Federal Register.

(Secs. 1, 2, 4, 40 Stat. 450, 451, sec. 1, 41 Stat. 1446, 42 Stat. 1434; 15 U. S. C. 261–265)

By the Commission, Division 2.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-5749; Filed, June 30, 1953; 8:47 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

PART 17—LIST OF AREAS

NATIONAL WILDLIFE REFUGES

EDITORIAL NOTE: For order affecting the tabulation in § 17.3, see Public Land Order 900 in the Appendix to Title 43, Chapter I, *supra,* revoking Executive Order 8658 of February 3, 1941. The Prairie Lake National Wildlife Refuge listed in the aforesaid section was established by Executive Order 8658.

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Bureau of Internal Revenue

[26 CFR Parts 140, 450]

[Regs. 8]

TAXES ON TOBACCO, SNUFF, CIGARS, CIGARETTES, CIGARETTE PAPERS AND TUBES, AND PURCHASE AND SALE OF LEAF TOBACCO

SHIPMENTS OF TAX-FREE TOBACCO PRODUCTS, AND CIGARETTE PAPERS AND TUBES, FOR USE OF UNITED STATES

A notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury. Prior to the final adoption of such regulations consideration will be given to any data, views or arguments pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Internal Revenue, Washington 25, D. C., within the period of 30 days from the date of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in 53 Stat. 467; 26 U. S. C. 3791.

T. COLEMAN ANDREWS,
Commissioner of Internal Revenue.